

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY-----X
AREN KAYSERIAN,

Plaintiff,

SUMMONS

Index #

-against-

Basis of Venue:

Place of Incident

THE CITY OF NEW YORK, NYPD DETECTIVE
DAVID PARAY (Shield # 4280), NYPD OFFICER
Gaillard (f/n/u) and NYPD OFFICER BOYLE
(Shield # 2515), and NYPD OFFICERS JOHN and
JANE DOE #'s 1-8 (names numbers are unknown at
present) and other unidentified members of the New
York City Police Department,

Plaintiff Designates
Kings County
as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York

January 5, 2020

Respectfully submitted,

/s/

Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD DETECTIVE DAVID PARAY (Shield # 4280), 299 Command, NYPD OFFICERS GAILLARD
(f/n/u) and BOYLE (Shield # 2515), 81st Precinct, New York, NY

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
AREN KAYSERIAN,

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NYPD DETECTIVE
DAVID PARAY (Shield # 4280), NYPD OFFICER
Gaillard (f/n/u) and NYPD OFFICER BOYLE
(Shield # 2515), and NYPD OFFICERS JOHN and
JANE DOE #'s 1-8 (names numbers are unknown at
present) and Other Unidentified members of the New
York City Police Department,

Defendants.
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Plaintiff **Aren Kayserian**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff and malicious prosecution and denial of a fair trial of the plaintiff. Defendants additionally used excessive force in violation of Plaintiff's constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. Aren Kayserian is a resident of the State of New York, Queens County.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD DETECTIVE DAVID PARAY (Shield # 4280), 299 Command, NYPD OFFICERS GAILLARD (f/n/u) and BOYLE (Shield # 2515), assigned Shield # 4280 employed with the

Strategic Response Group 1, are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

5. NYPD DETECTIVE) DAVID PARAY (Shield # 4280), 299 Command, NYPD OFFICERS GAILLARD (f/n/u) and BOYLE (Shield # 2515), assigned Shield # 4280 are being sued in their individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-8 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-8 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

STATEMENT OF FACTS

12. On May 9, 2019 at approximately 8:00 a.m., at the 81st precinct, in Brooklyn, New York, Mr. Kayserian voluntarily surrendered himself to police officers. Police officers from the 81st precinct, including, upon information and belief, defendant NYPD Detective David Paray (Shield # 4280), and Police Officer Boyle (f/n/u) (Shield # 2515), and NYPD Officers John and Jane Does #1-8, and other yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff Kayserian.
13. Prior to going to the precinct on May 9, 2019 to surrender to officer, Plaintiff Kayserian had made 3 separate visits to the precinct to request a police escort to enter his apartment and retrieve

valuable items left there. He was required to retrieve these items before his lease expired on April 31, 2019 or would face a fine from his landlord. The order of protection explicitly granted him access to the apartment with a police escort. Plaintiff Kayserian first went to the precinct on April 19, 2019, and brought with him a copy of the order of protection and requested a police escort to the property. Upon information and belief, NYPD officer Gaillard (f/n/u) told him to return at an unspecified later date for a police escort. Plaintiff Kayserian returned to the precinct again a few days later to again request a police escort. This request was again denied. Finally, on April 29, 2019 he returned to the precinct to request a police escort. Upon information and belief, NYPD Officer Boyle (Shield # 2515) declined to accompany him, but informed him he could return to the property with a friend. Defendant officer informed Plaintiff he could have this friend enter the apartment on his behalf and retrieve the property. Relying on this advice, Plaintiff Kayserian asked a friend, George Baviar to retrieve the belongings on his behalf. Mr. Baviar went to the apartment later that same day and was granted access to the apartment. He retrieved several of Plaintiff's Kayserian's items, but did not retrieve other valuable items including his mattress and bed frame. Plaintiff Kayserian never entered the apartment on that date.

14. The following day, April 30, 2019, Plaintiff Kayserian returned to criminal court to request a modification to the Order of Protection that would allow him access to the apartment to retrieve his remaining valuable items. The Order of Protection was modified to allow a police escort for April 31, 2019. On April 31, 2019, Plaintiff Kayserian returned to the apartment with a police escort and retrieved his bed frame. His mattress was missing and never recovered.
15. On May 7 or 8 2019, Defendant NYPD Detective Paray from the 81st precinct contacted Plaintiff Kayserian by telephone. The detective told Plaintiff that he was being accused of violating the order of protection by his former apartment-mate. Plaintiff Kayserian explained in detail the reasons he had not violated the order, and informed him of the modification of the order on April 30, 2020 and the police escort to the apartment on the following day. Upon information and belief, the detective never investigated these defenses, but merely told Plaintiff Kayserian to come to the precinct.
16. Plaintiff Kayserian's attorney contacted the detective and informed him of the lack of evidence supporting an arrest. Defendant NYPD Detective Paray was given ample information demonstrating that no portion of the order of protection was ever violated by Plaintiff Kayserian. Regardless, Plaintiff Kayserian was told to go to the precinct to surrender for his arrest.
17. When Plaintiff Kayserian arrived at the precinct on May 9, 2019 to discuss the allegations, defendant officers without an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicions that plaintiff had committed a crime, unlawfully searched and detained plaintiff.
18. Once plaintiff entered the precinct he was not free to walk away or leave the scene.
19. Defendants purported that plaintiff had committed criminal contempt for allegedly violating an order of protection. Prior to and at the time of his arrest, defendants had substantial evidence indicating this charge was unfounded, but failed to investigate it further.

20. Defendants disregarded this information and arrested plaintiff for criminal contempt. Plaintiff denies these charges and provided testimony and objective proof at the time of his arrest demonstrating the invalidity of the charges.
21. During his incarceration Plaintiff Kayserian was assaulted by an inmate. Defendants failed to protect Plaintiff Kayserian or intervene in these acts of violence committed against him during his time in custody.
22. While plaintiff was incarcerated at the 81st precinct and Central Booking, defendants falsely and maliciously told the New York County District Attorney's Office that plaintiff had committed the crime of criminal contempt. Defendants knew this allegation to be false based on information provided at the time of plaintiff's arrest.
23. Based on the defendant's false statements, the King's County District Attorney's office chose to prosecute plaintiff under docket CR-018044-19KN.
24. Plaintiff was incarcerated for approximately 15.5 hours. During his confinement he was subject to deprived, filthy and inhumane conditions.
25. Plaintiff Kayserian was released on his own recognizance at arraignment.
26. On December 4, 2019, the above-stated malicious prosecution terminated in plaintiff's favor when the case against him was dismissed and sealed in its entirety.
27. Prior to dismissal, plaintiff attended approximately 7 court appearances.
28. Plaintiff suffered stress, anxiety, and depression as a result of the arrest and received therapy to help him cope with his mental anguish.

FIRST CAUSE OF ACTION

ASSAULT

29. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 28 with the same force and effect as if more fully set forth at length herein.
30. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff. Plaintiff suffered such assault by presently unknown officers while being transported from the precinct to Central Booking.
31. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.

32. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

BATTERY

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.
34. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery. Plaintiff was assaulted by police officers.
35. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
36. The City, as the employer of Defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

37. Plaintiff repeats and alleges paragraphs 1 through 36 as if fully set forth herein.
38. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
39. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
40. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION**MALICIOUS PROSECUTION**

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.
42. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
43. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
44. Defendants commenced and continued a criminal proceeding against plaintiff.
45. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.
46. The prosecution and criminal proceedings terminated favorably to plaintiff on September 18, 2019.
47. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
48. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION**NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION**

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.
50. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

SIXTH CAUSE OF ACTION**FAILURE TO INTERVENE**

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
53. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
54. As a result of the foregoing, plaintiff was subjected to an illegal search and undue force upon his person over the course of the false arrest.
55. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
56. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

NEGLIGENCE

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.
58. Defendants owed a duty of care to plaintiff.
59. Defendants breached that duty of care by subjecting him to an illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
60. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
61. All of the foregoing occurred without any fault by plaintiff.
62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

CRUEL AND UNUSUAL PUNISHMENT

63. The plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.
64. By actions described herein, the individually named police officer defendants and correction officers, each acting individually and in concert with one another, intentionally disregarded plaintiff's medical needs. Defendants refused to provide any medical treatment to the plaintiff,

despite his repeated requests they do so. This failure to provide treatment inflicted unnecessary and wanton pain upon plaintiff. As a result, plaintiff suffered severe pain and prolonged physical harm.

- 65. As a result of the foregoing, plaintiff was subjected to cruel and unusual punishment.
- 66. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

- 67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.
- 68. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
- 69. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
- 70. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

TENTH, ELEVENTH, TWELFTH, THIRTEENTH CAUSES OF ACTION

42 U.S.C. § 1983 and 42 U.S.C. 1988

Violation of First, Fourth, Fifth, Eighth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's federal first-amendment-retaliation claim (9th claim); false-arrest/excessive force/unlawful-search claims (10th claim); malicious-prosecution claim (11th claim) and deprivation-of-fair-trial claim (12th claim).

- 71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.
- 72. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiff's federal constitutional rights as protected by 42 USC Section 1983.
- 73. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiff's Section 1983 ones here.
- 74. Plaintiff's federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of his First, Fourth, Fifth, Eighth and Fourteenth Amendment rights.

75. In particular, Plaintiff alleges that Defendants' retaliatory and harassing false arrest, use of undue and excessive force upon him causing physical injury, unlawful search, malicious prosecution and fabrication of evidence violated his First, Fourth, Fifth, Eighth and Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiff to deprivation of his liberty, seizure and search of his person, and other constitutional injuries, yet they did so with malice and retaliatory intent.
76. Insofar as Plaintiff's federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiff repeats and reiterates the above allegations in support of the federal claims here.
77. In the event Plaintiff prevails at trial on one, some or all of his 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, he also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

FOURTEENTH CAUSE OF ACTION

Municipal liability pursuant to 42 USC Section 1983

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.
79. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
80. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions to achieve remunerative ends through overtime, to achieve professional advancement through arrest numbers, and to satisfy personal whims through retaliatory use of their authority.
81. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
82. Similarly, the City of NY is on notice of the obvious risk that their failure to train, discipline and supervise its officers—and in particular these specific Defendants who discovery will show to have been the subject of misconduct allegations that went uncorrected—proximately caused the constitutional violations suffered by Plaintiff here.

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ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at the law firm of **THE LAW OFFICE OF SYDNEY O'HAGAN, P.L.L.C.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
January 7, 2021

_____/s/
Sydney O'Hagan, Esq.